

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 01/22/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C24-03378
CASE NAME: CL LA FIESTA SQUARE CA LP VS. URBAN REMEDY, INC.
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET 1
FILED BY: CL LA FIESTA SQUARE CA LP
TENTATIVE RULING:

Plaintiff's Motion to Compel Defendant Urban Remedy to Further Respond to Plaintiff's Form Interrogatories, Set One is GRANTED. The court orders Defendant to provide Plaintiff with code-compliant objection free further responses to Form Interrogatory 15.1 by February 20, 2026. Plaintiff's request for monetary sanctions is GRANTED in the amount of \$450, payable to Plaintiff by February 20, 2026.

On July 19, 2025, Plaintiff CL La Fiesta Square CA LP (“Plaintiff”) served Defendant Urban Remedy, Inc. (“Defendant”) with its first set of form interrogatories including approximately 17 form interrogatories. Defendant provided responses to 10 requests and provided only objections to the remaining, including Interrogatory No. 15.1, which asks Defendant to identify each denial of a material allegation and each special or affirmative defense in its pleadings and to state all facts on which such denial or defense is based, and to identify witnesses with knowledge of the facts or documents that support the denials or defenses.

Defendant responded that the request was “vague, ambiguous, and overbroad as applied in this context.” This court disagrees.

This matter involves an allegation of a breach of a commercial lease for failing to pay rent. The Defendant filed an answer on January 27, 2025, in which they asserted a general denial and nine affirmative defenses for which this interrogatory seeks support. The court does not find the request to be vague, ambiguous or overbroad as it seeks support for Defendant’s own assertions. Defendant’s objections lack merit and are overruled. The court orders Defendant to provide Plaintiff with code-compliant objection free further responses to Form Interrogatory 15.1 by February 20, 2026.

Sanctions may be imposed if the court finds that the party provided “an evasive response to discovery” or “oppos[ed] a motion to compel without substantial justification.” (California Code of Civil Procedure §2023.010(f), (h)). The court finds both grounds supported here.

Plaintiff’s request for sanctions is GRANTED, however, the court finds them excessive. Defendant for the most part complied with the other requests for Form Interrogatories. Sanctions are ordered in the amount of \$450, payable to Plaintiff by February 20, 2026.

2. 9:00 AM CASE NUMBER: C25-01000
CASE NAME: VINUBHAI PATEL VS. JAMES, COOKE & HOBSON, INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM, SPECIAL INTEROGS AND PROD OF DOCS**
FILED BY: JAMES, COOKE & HOBSON, INC
TENTATIVE RULING:

Vacated.

Courtroom Clerk's Session

3. 1:30 PM CASE NUMBER: C24-02163
CASE NAME: RYAN WAGNER VS. DARRELL JONES
SETTLEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

The parties are to appear in person for good faith settlement discussions.